STAR PRECIOUS JENAMI
versus
SHONGWE MICHAEL NDORO
and
MASTER OF THE HIGH COURT OF ZIMBABWE

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE, 20 November 2025 and 12 February 2026

Court Application-Declaratur

T Mpofu, for the Applicant
F Murisi, for the 1st Respondent
No appearance for the 2nd respondent

MAXWELL J: Applicant approached the court seeking the following order;

"It is Declared that

1. The subdivision carried out on Randhurst Grange Estate, located in the Goromonzi district and comprising 926.5930 hectares (also referred to as Machipisa Farm) does not amount to dividing the property into two equal portions as mandated by the Supreme Court in SC 155/24.
   Alternatively. It is ordered that:
2. In accordance with the order issued by the Supreme Court in SC 155/24, the applicant is to select first the portion of the subdivided Randhurst Grange Estate, located in the district of Goromonzi and measuring 926.5930 hectares also referred to as Machipisa Farm, that she will take.
3. First respondent shall bear costs of this applicants at the higher scale of legal practitioner and own client."

Applicant stated in the founding affidavit that she was married to the first respondent and the marriage was dissolved on the 26th of November 2019. The decree of divorce did not deal with the propriety consequences of the marriage. She subsequently approached the court for ancillary relief citing first respondent and three others. The relevant portion of the order in HH 451/23 ordered that.

"1. Machipisa Farm, formally known as the remainder of Randhurst Grange Estate situate in the district of Goromonzi measuring 926.5930 hectares be subdivided by land surveyors appointed by the Master of the High Court, within 30 days of this order.

2. The property shall be subdivided into two portions with the plaintiff holding 777 hectares and the balance being awarded to the first defendant.

3. The costs of the subdivision, including costs of registration of new title shall be borne by the plaintiff and the first respondent in proportion to the subdivision."

First respondent appealed against the judgment. The Supreme Court upheld the appeal in respect to Machipisa Farm. It ordered that:

"The property shall be subdivided into two equal portions and the first defendant is awarded one portion while the plaintiff is awarded the other portion."

A surveyor was appointed and he submitted his proposal for the subdivision. Applicant stated that her input was not requested before the proposal was submitted for approval. She explained that next to Machipisa Farm is Utopia Farm which was awarded to the first respondent in the divorce settlement. Machipisa Farm has road frontage. It does not have a dam but the water from Utopia Farm also occupies a substantial part of Machipisa Farm. Most importantly, the perennial river Upper Mswiti flows through Machipisa Farm to feed into Utopia Farm. Both parties wanted to have road frontage and access to water. Applicant stated that there are some amenities which include irrigation and underground water pipes from Utopia Farm which feed close to 85 hectares of irrigated, cleared and currently productive agricultural fields. In her view first respondent believes that the award to him of Utopia Farm puts him in good stead to be allowed the portion of Machipisa Farm that is close to that farm. She however, argued that there is no precedent that one should be allocated land in proximity to the land they already own.

She submitted that by reason of the amenities, if a subdivision is made based on a straight line, the disparities in value in respect of the two portions of the farm would be so huge to such an extent that no equality could ever be achieved. In her view, it is possible to subdivide the property in such a way that the parties would share road frontage, access to water while taking account of the irrigation, other infrastructure and the prepared fields that are on one side of the farm which is close to Utopia Farm.

Applicant raised concerns about the proposed subdivision. A meeting was held before the second respondent. Her concerns were not addressed she pointed out that the subdivision

that has been produced does not amount to dividing the property into two equal portions as mandated by the Supreme Court. Second respondent must be required to discharge the function imposed upon him by the Supreme Court so that equality in value is achieved. She prayed that in the event that the flawed process must stand, then she ought to be given the right to select first her preferred portion.

The application was opposed by the first respondent. He stated that the Supreme Court found that a just and equitable sharing of the farm was to divide it into two equal portions by land size with each party getting one portion. He stated that the court never made a finding that the equality of the sharing of the farm would go to the extent of looking at amenities and the value of each side of the farm. He pointed out that the second respondent appointed a surveyor as ordered in HC 9611/18 and the subdivision was done and finalized. He attached the subdivision permit, map and the diagram from the surveyor. He submitted that when the surveyor started the subdivision process, he invited input from both parties. He submitted his input but applicant decided not to cooperate and did not submit her input. He further submitted that the surveyor set up a couple of meetings but because the parties would not agree the surveyor in consultation with the second respondent decided to proceed with his mandate without the input from any of the parties.

First respondent disputed that the subdivision process had been fraudulently initiated. He submitted that the parties had agreed to the surveyor continuing with his mandate on the paperwork that had been initiated by the first respondent. According to him, the parties discussed the issue that he would take the portion of the subdivision that would be close to Utopia Farm. First respondent disputed that Mswiti River is a perennial river. He submitted that the issue of both parties wanting road frontage, access to water, water sources, both dam and river was never a part of the Supreme Court order. In his view, the farm was not shared on the basis of some other equity and value considerations but on the basis of land size both in the High and Supreme Courts.

First respondent submitted that the divorce action between them was very acrimonious and it will be creating a disaster to allow the applicant to come in between the first respondent's two farms. He proposed that he be awarded the portion near Utopia Farm to prevent that disaster. He pointed out that the applicant cannot use these proceedings to try and have the order

of the Supreme Court amended to speak to other things which she never raised even on the appeal itself.

In answer applicant confirms that the difference between the parties' positions is in the interpretation of the Supreme Court order. She argued that the construction to be placed on the order of the Supreme Court is a matter of law.

Analysis

The order sought by the applicant is a declaratur.

Section 14 of the High Court Act gives this court power to enquire and determine at the instance of any interested person, any existing, future or contingent right or obligation, notwithstanding that such a person cannot claim any relief consequent to such a determination.

A look at the declaration sought leads to the conclusion that applicant is not seeking the declaration of any existing, future or contingent right on obligation. She is aggrieved by an administrative process that was undertaken pursuant to Supreme Court order SC 155/24. In her view, the administrative process undertaken does not satisfy the mandate given by the Supreme Court. In her heads of argument, applicant submitted in para 1.4.

> "A court order will be construed the same way that a contract is construed. This means in the order of things, the court must look at its text, its context and its purpose." (underlining for emphasis)

The text of the Supreme Court order provided for the subdivision of the property into two equal portions. The key phrase is "equal portions." In *Lungu and Others* v *RBZ* SC 4/24 it is stated:

> "It is trite that words in any document, statute or contract must be given their ordinary dictionary meaning unless this would lead to an absurdity. In the absence of a contrary definition within the document, statute, or contract such words must be given their plain, ordinary and literal meaning. This is the literal or golden rule of interpretation. Only when ambiguity arises in the interpretation of such words can there be a departure from this rule."

The literal meaning of dividing into two equal portions means dividing into two parts that are identical in size, amount or value. It signifies that each recipient receives an equivalent, fair share, with no part being larger or smaller than another. It is often used to describe balanced, uniform or 50/50 splits. Each part is identical in measurement and shape.

A consideration of the context in which the impugned subdivision was done shows that the issue of value was not in the mix. The Supreme Court judgment was issued on 9 September

2024. On 18 September 2024 the land surveyor Mr Chipuka was appointed. On the 17th of October 2024, Messrs Atherstone & Cook wrote to the Department of Physical Planning and Development for the attention of T Mbavarira. They advised Mr Mbavarira that the Supreme Court had ordered the subdivision of the farm into two equal portions. They further stated.

> "…Accordingly, the objection we filed with your office on 7 August 2024 is no longer relevant as parties have agreed that Mr Chipuka can procced with his mandate to subdivide Machipisa Farm into two equal portions but using the documents that had been submitted by Mr Ndoro…"

Agreeing to use the documents that had been submitted by Mr Ndoro meant agreeing to the subdivision of the farm according to hectarage, i.e size. The subdivision permit was referred to Mr Chipuka by letter dated 22 May 2025. The permit clearly says it was for the creation of

> "certain pieces of land situate in the District of Goromonzi being 1. Lot 5 of Randhurst Grange Estate measuring 463,2965 hectares 2. Remainder of Randhurst Grange Estate measuring 463,2965 hectares."

Attached to the permit was information for the attention of the applicant on appeals, warning, revocation of permit, extension of time, development, survey, copies of the permit, amendment to the permit and queries. Under appeals it is provided that;

> "any person aggrieved by any decision made in connection with the permit may, within one month of the date of notification of the decision against which the appeal is made…appeal in such manner as is prescribed in the Town Planning Court Rules 1971. The Appeal should be addressed to the Registrar of the Admin Court, P.O Box 8338 Causeway."

From the record, it appears that the subdivision was a lawful administrative action that was done with the agreement of the parties. Applicant did not demonstrate that the papers filed by Mr Ndoro at the Department of Spartial Planning were for a different subdivision other than that specified in the permit. Her disgruntlement with the resultant subdivision is therefore clearly a grievance in connection with the permit which ought to have the taken up in the Administrative Court, in the event that the permit was not in line with the papers submitted by Mr Ndoro.

After acquiescing to the subdivision of the farm on the basis of the papers submitted by Mr Ndoro to the Department of Spartial Planning, applicant cannot criticize the outcome of that process. Applicant cannot be allowed to approbate and reprobate. To issue the declaratur applicant asked for is to allow her to approbate and reprobate. The application for a declaratur therefore fails.

Applicant sought an alternative order that she be allowed to select first the portion she will take after the subdivision. She stated that her prayer is "in accordance with the order issued by the Supreme Court." As stated before, the relevant portion of the Supreme Court order stated.

> "2. The judgment of the court *a quo* is amended by the deletion of para 2 thereof and the substitution of the following:
> "2. The property shall be subdivided into two equal portions and the first defendant is awarded one portion while the plaintiff is awarded the other portion."

In HH 451/23, the applicant was the plaintiff and the respondent was the first defendant. In my view, the fact that the Supreme Court order first makes reference to the first defendant means he is the one to select a portion first. The person being awarded "the other portion" cannot be said to be the one with the first choice. Respondent was the appellant in SC 83/25. It follows that after being successful on appeal, an order in his favour was issued. By making refence to the Supreme Court Order, applicant has failed to establish a basis for having the opportunity to select first the portion that she will take.

Accordingly, the application fails in both the main and alterative relief sought.

On the issue of costs, I am cognisant of the fact that this matter arises from what has been described as an acrimonious divorce. The Supreme Court judgment which is the basis of this application did not make any order as to costs. In HH 451/23 each party was to pay his or her costs. I am inclined to follow the same pattern and not order any costs.

DISPOSITION

The application be and is hereby dismissed with no order as to costs.

MAXWELL J:……..

Messrs Atherstone and Cook, applicant's legal practitioners
Murisi and Associates Legal Practitioners, first respondent's legal practitioners